

the foreign currency cheque(s) and the Client agrees to immediately reimburse Convera for any amounts delivered to the Client by Convera in connection with the foreign currency cheque(s) purchase.

14.5 Foreign Currency Cheque Indemnity. The Client agrees to indemnify and hold Convera harmless for any damages, losses, costs and expenses incurred by Convera in connection with Convera acceptance, negotiation or purchase of any foreign currency cheque received by Convera from the Client. The Client acknowledges that Convera is relying upon this indemnity in providing value in exchange for any foreign currency cheque.

15. Incoming Payments

15.1 Delivery of Incoming Payments.

- a) The Client may instruct a third party to electronically deliver a certain amount of funds for the benefit of the Client into a correspondent bank account designated, owned and maintained by Convera ("**Incoming Payment**").
- b) The Client must require that the third party sender include the Client's name and account number (as designated by Convera) in the memo or reference line of any such Incoming Payment. Convera may in its sole discretion, attempt to contact the third party sender to secure any additional information that may be needed to ensure accurate processing of the Incoming Payment.
- c) Convera will not be liable to the Client for any loss or damage suffered by the Client as a result of any delay in delivery of the Incoming Payment which results from the lack of complete and accurate Incoming Payment information.
- d) Following Convera's receipt and confirmation of the Incoming Payment, Convera will deduct its applicable fees and if the Client previously had delivered an Instruction stipulating the disposition of the Incoming Payment, Convera will initiate the payment in accordance with such Instruction.

15.2 Sole-proprietor and Partnership Clients. Convera has the sole discretion to decide whether or not to accept an Incoming Payment on behalf of a Client. The Incoming Payment service is not available to a Client which is a sole-proprietor or partnership (save for a limited liability partnership).

16. Limitation of Services

16.1 Limitation on the Services.

- a) The Client represents that the Services are being used for business/ commercial purposes only and in the course of effecting genuine business transactions (not for the purpose of speculation and/or investment), and in respect of Services provided by Convera FS Singapore, the Client represents that the Services are being used for the purpose of hedging the Client's business risk arising from currency value movement and not for speculative purposes.
- b) The Client further represents, warrants and confirms that all Instructions will be placed pursuant to and in accordance with this Agreement.
- c) The Client agrees not to use the Services to make payments for any illegal purpose. In addition, the Client certifies that it will not use the Services to make any payments relating to online gambling, pornography or other similar activities (as notified to the Client from time to time).
- d) The Client acknowledges that any Instruction issued will be binding upon and enforceable against the Client and does not violate the terms of any other agreement to which the Client is bound.
- e) The Client acknowledges that each of Convera Singapore and Convera FS Singapore :
 - i. is not offering or holding themselves out to be offering and will not offer to provide any regulated services other than those that each of them is approved, licensed or registered to conduct; and
 - ii. reserves the right to reject the provision of any services if doing so would result in a breach or potential breach or applicable laws and regulations and that in such event, it will not be liable for any losses or damages suffered by the Client.
- f) The Client represents that it fully complies with all Export Control Laws and Sanctions, and neither the Client nor any